

IN THE DISTRICT COURT OF GREER COUNTY
3RD JUDICIAL DISTRICT

STATE OF OKLAHOMA
(Plaintiff)

FILED

JUN 06 2024

Damon Cagle
(Attorney for State)

Vs.

Case No. CF-22-57

Ashley Nicole Wastle
(Defendant)

GREER COUNTY OKLAHOMA DIST. COURT
JEANNA SCOTT, COURT CLERK
Deputy

Cole McMahon
(Attorney for Defendant)

RECORD OF PROCEEDINGS IN OPEN COURT-FELONY

On June 7th 2024 at 9:27 AM, the indicated proceedings occurred:

☒ Court Reporter Kevin Wilmeth

PRELIMINARY INQUIRY AND ARRAIGNMENT

☒ Defendant appeared (~~appeared not~~) in person.

☒ Defendant's attorney (~~appointed~~) (retained) appeared;

☐ The Court appointed _____ as counsel for defendant;

☐ Defendant admitted true name as charged, stated his age _____ years, his home as: _____;

☒ Defendant advised he was charged with a felony, Rape Second Degree 2 counts

and the punishment prescribed by law for the offense charged;

☒ Defendant advised the Court that he (could) (~~could not~~) read and write;

☒ Defendant advised the Court that he (~~had~~) (had not) consumed alcoholic beverages or drugs in the last 24 hours; that he understood what was happening;

☒ Defendant advised the Court that he (had) (~~had not~~) received a copy of the information;

☒ Defendant advised the Court that he (did) (~~did not~~) understand the nature of the charges;

☐ The information was read to the defendant by the State;

☒ Defendant affirmatively waived the reading of the information;

☒ Defendant advised by the Court of his constitutional rights, right to counsel and if he desired counsel and had no means and unable to employ counsel the Court would appoint counsel for him without expense to him, right to jury trial, right to be confronted by witnesses who would testify against him, right to call witnesses on his behalf at no expense, his privilege against compulsory self-incrimination and consequence of his plea, and right to appeal any judgment of guilt;

☐ Defendant granted 24 hours in which to plead. (Bail continued at \$ _____)

☐ Defendant affirmatively waived his right to 24 hours in which to plead;

☐ Defendant entered a plea of not guilty. (Bail continued at \$ _____)

☐ Case order set on next Jury Docket with motion to be filed by _____

Motions heard on _____

☒ Court determines Des waived Preliminary Hearing
Des waived 2 judge Requirement

☒ Defendant enters a plea of ~~guilty~~ ^{no contest} and affirmatively waived the following:

- ☒ Waived his right to Court appointed counsel;
- ☒ Waived his right to jury trial;
- ☒ Waived his right to confront witnesses against him;
- ☒ Waived his privilege against self incrimination;

☒ Defendant advised the Court that he understood the minimum and maximum penalties of the charge;

☒ Defendant advised the Court that his ~~guilty~~ ^{no contest} plea was made voluntarily, and in his own words gave factual basis;

____ Defendant withdrew his plea of not guilty and entered a plea of guilty.

____ Pre-sentence report (ordered) (waived by the District Attorney and defendant in open Court.)

____ Judgment and Sentence set for _____

____ Judgment and Sentence deferred to _____

☒ Court's usual rules and conditions to apply and the following special conditions:

Def can't volunteer at no schools while on probation

JUDGMENT AND SENTENCE

☒ Defendant affirmatively waived his right to 48 hours before Judgment and Sentence is pronounced.

☒ It is the Judgment of the Court that the defendant is guilty and is ordered committed to the custody of the Department of Corrections of the State of Oklahoma for a term of imprisonment of ct 1 - 5 years All Suspended

ct 2 - 5 years All Suspended

ct 1 & ct 2 - Run concurrent.

Defendant to begin when delivered to the Warden of the Lexington Assessment Receiving Center, Lexington, Oklahoma. The Sheriff is directed to deliver the defendant to said Warden (at the end of ten days) or (at his earliest convenience);

☒ Upon the facts presented to the Court it is further ordered that the execution of the sentence of imprisonment is suspended upon condition of the good behavior of the defendant and his compliance with the rules and that defendant be released upon his own recognizance.

ATTORNEY FEE, COSTS AND SUPERVISION

____ Counsel appointed order to be paid \$ _____ from the Court Fund;

____ Appointed counsel fees are to be included in costs;

☒ Defendant ordered to pay Court Costs \$ AS DETERMINED BY COURT CLERK'S OFFICE

Paid in Full today

☒ Fine ct 1 - \$500.00 ct 2 \$500.00

____ O.S.B.I. Lab Fees assessed as costs;

☒ Probation fees (assessed) (~~waived~~);

☒ VCA fees in amount of \$ ct 1 \$100.00, ct 2 \$100.00 (assessed) (~~waived~~)

☒ Defendant is ordered placed under supervision of the Department of Corrections.

☒ Defendant notified of his right to (petition for writ of certiorari) (appeal) to the Court of Criminal Appeals and if indigent upon application to have counsel appointed for him without costs and to have a transcript furnished without costs. Defendant informed the Court that he understood his right to appeal.

Jeanna Scott
Attest to the Indicated Proceedings

[Signature]
ASSOCIATE DISTRICT JUDGE